

Limited-Sources Justification (LSJ)
For orders or BPAs exceeding the Simplified Acquisition Threshold

LSJ No.: FY25-078

This acquisition is conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies.

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Countering Weapons of Mass Destruction/Health Security Acquisition Division (CWMDHSAD) proposes to exercise the FAR 52.217-8 Option to Extend Services on contract #70RWMD24FCP000003 with Deloitte Consulting, LLP pursuant to FAR 8.405-6(a), Limiting Sources.

2. Nature and/or description of the action being approved.

DHS/OPO intends to limit the number of sources solicited pursuant to FAR 8.405-6(a)(1)(i)(A). The Contractor will be providing the services required at the level of quality required due to the consistent support required to sustain critical health security and mass migration (border health) operations while the Office of Health Security (OHS) conducts a new procurement for a comprehensive Advisory and Assistance Services (A&AS) contract vehicle. The OHS had originally anticipated in December of 2024, that this task order performance would end as scheduled on March 16, 2025, and work would be allowed to temporarily pause for certain activities provided by the Contractor. However, the OHS now has a substantial role in supporting the current immigration enforcement operations – including 24/7/365 operations at Naval Station Guantanamo Bay and across the Nation. This contract was already supporting border health and emergency medical services activities and a lapse would present significant challenge to the OHS response efforts. The incumbent Contractor is as follows:

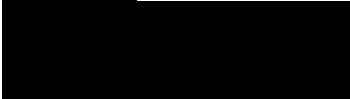
Contractor Name: Deloitte Consulting, LLP
Address: 1919 N. Lynn Street Arlington, VA, 22209

3. Description of Supplies/Services.

This requirement is to obtain critical program and operational contractor support for the DHS Chief Medical Officer (CMO) and OHS. The program requires these specialized and technical areas of expertise to support the ongoing activities related to border health, emergency medical services and workforce health and safety. These activities require coordination with other federal agencies and highly complex efforts to establish effective and efficient capabilities that are responsive to emerging border health and health security requirements. The Contractor will continue to support DHS with the following activities: strategic and operational planning, medical and public health program management support, strategic and operational communications, data governance, and analysis and reporting.

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The Contractor shall provide personnel who can serve as integral members of the Government's Divisions to which they are assigned. This includes the necessary specialties and labor categories to support delivery across key tasks and activities in supporting the strategic transformation of the OHS, including designing the strategy and structure, managing key milestones throughout the process, communicating the change to staff and internal/external stakeholders, as well as support across implementation of ongoing OHS priorities and new capabilities. The key responsibility will be in providing assistance with regard to program and operational coordination among OHS, CMO, and other stakeholders.

<u>Period</u>	<u>Duration</u>	<u>Total</u>
March 17, 2025 – June 16, 2025	3-months	
June 17, 2025 – September 16, 2025	3-months	

4. Authority and supporting rationale.

FAR 8.405-6(a)(1)(i)(A) An urgent and compelling need exists, and following the ordering procedures would result in unacceptable delays.

This acquisition is being conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies, in accordance with FAR 8.405-6(a), Limiting Sources. The FAR 52.217-8 6-month extension will be exercised in the interest of economy and efficiency to continue work under Blanket Purchase Agreement (BPA) Order 70RWMD24FCP000003 pursuant to FAR 8.405-6(a)(1)(i)(A). The original award (Order 70RWMD23F00000020) was competitively solicited and awarded using the ordering procedures at FAR 8.405 and awarded against U.S. Customs and Border Protection's (CBP) Multiple Award BPA number 70B04C19A00000002.

This option requirement fulfills an existing Government need and exercising the option is the most advantageous method of fulfilling the Government's need, price and other factors considered. This extension, also, considers the Government's need for continuity of operations and the potential costs of disrupting operations.

The urgency to maintain operational coordination of OHS Crisis Action Team, National Incident Command Center Medical Branch, and the federal interagency Medical Unified Group warrants this action to be accomplished through other than full and open competition. Deloitte Consulting, LLP is the current incumbent vendor on this award and a lapse in the support services during this critical time would result in serious injury, financial or other, to the DHS OHS. Accordingly, an urgent and compelling need exists, and following the ordering procedures would result in unacceptable delays to the mission. There is currently an urgency to maintain operational coordination of OHS Crisis Action Team, National Incident Command Center Medical Branch, and the federal interagency Medical Unified Group. The flexible and scalable contractual support services that will support the Crisis Action Team and enable OHS to optimally deliver on this mission under this order are critical and a lapse

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would create an unacceptable burden and risk on successfully accomplishing mission priorities.

Additionally, this order provides for critical support services to OHS in executing the Administration's priorities set forth in Executive Order (E.O) 14165 Securing Our Borders (and similar E.O.s) and for the immigration/migrant removal operations in process. In late calendar year 2024, the OHS had originally anticipated that this current support would end as scheduled and that there would be a temporarily pause to certain activities that were provided by this Contractor. However, the OHS now has a substantial role in current immigration enforcement operations, which includes the 24/7/365 operations at Naval Station Guantanamo Bay and other locations across the Nation. If the OHS and CMO had reasonably been able to foresee these mission priorities and the criticality of this support when making the acquisition planning decisions for the comprehensive A&AS contract vehicle, then no lapse in services would have been planned as initially intended. The current OHS operational medical and workforce health and safety support being provided for the DHS Immigration Enforcement and Removal Operations. OHS has an unusual and compelling urgency for continued flexible and scalable contractual support services that will support the Crisis Action Team and enable OHS to optimally deliver on this mission in support of U.S. Immigration and Customs Enforcement and ultimately helping to protect life, maintain health, and provide safety for frontline operators as well as migrants. A delay in awarding the continuation of these services could cause serious injury, financial or other, to the Government.

Finally, another basis for making this determination is that the contractor has been performing satisfactorily in accordance with the terms and conditions of the contract. The Contractor's past performance evaluations on other contract actions have been considered and no adverse information was found regarding the Contractor performance.

5. Determination by the ordering activity Contracting Officer that the anticipated order represents the best value consistent with FAR 8.404(d).

The Contracting Officer has determined that exercising the FAR 52.217-8 extension to BPA Order 70RWMD24FCP000003 for continued program and operational support to the DHS CMO and OHS represents the best value and will result in the lowest overall cost, considering price and administrative costs, to meet the Government's needs. The option to extend services will be exercised in accordance with FAR 8.404, "Use of Federal Supply Schedules." The BPA rates for the Base and Option Periods have already been negotiated and considered fair and reasonable pricing rates at the CBP EMBSS 1.0 BPA agreement level. However, the FAR 52.217-8 rates were not evaluated at time of award. The Contracting Officer will request these rates and determine whether they are fair and reasonable for this extension of services. Discounts to these BPA rates will also be requested. Additionally, prior to exercising the FAR 52.217-8 extension, the ordering activity will consider the level of effort and the mix of labor proposed to perform the specific task being ordered in order to determine that the total price is reasonable. The Contractor's labor mix

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and level of effort will also be compared to the Independent Government Cost Estimate (IGCE).

6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

The initial market research that led to this current contract vehicle was performed in 2023 and 2024, with additional market research performed from January 2025 – February 2025 in support of this FAR 52.217-8 extension. OHS coordinates extensively with U.S. CBP. CBP has awarded a competitive multiple award Enterprise Business Management Support Services (EBMSS) Blanket Purchase Agreements (BPAs) to:

- Booz Allen Hamilton
- Deloitte Consulting LLP
- NTT Data Federal

The three (3) BPA holders provide non-personal support services to program and project managers in a wide range of enterprise business management domains (technical and business) which are required by OHS.

There is supporting rationale and pertinent background information supporting this justification. This justification is based on an urgent and compelling need existing, and following the procedures would result in unacceptable delays. Specifically, the Contractor support provided for under this justification and FAR 52.217-8 option to extend services would facilitate the response to DHS Health Support to Immigration Enforcement and Removal Operations.

7. Any other facts supporting the limited-sources justification.

No additional facts.

8. A statement of actions, if any, the agency may take to remove or overcome any barriers that led to restricted consideration (i.e., limited sources) before any subsequent acquisition for the supplies or services is made.

This requirement will be re-competed and awarded to a successor Contractor in the near term. This FAR 52.217-8 Option to Extend Services extension is only required to preserve continuation of these critical services while the new contract vehicle is being procured.

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9. DHS intends to post this requirement on System for Award Management (SAM.gov) pursuant to FAR 8.405-6(a)(2)(i).

10. Technical/Requirements Personnel Certification.

Pursuant to FAR 8.405-6(c)(2)(x), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the Limited-Sources Justification, are accurate and complete.

[Redacted Signature]

Technical Representative/COR

11. Contracting Officer Certification.

Pursuant to FAR 8.405-6(c)(2)(ix), I certify that the Limited-Sources Justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer

12. Approval.

[Redacted Signature]

Procuring Activity Advocate for Competition